



Patent Procurement | 2025

A United States (U.S.) patent gives its owner the right to exclude others from making, using, selling, offering to sell, and importing the patented invention in the U.S. for a term of 20 years.¹

Under U.S. law, a patent application must be filed within one year of a public disclosure, sale, or offer for sale of the invention or the ability to obtain patent protection may be lost. This memorandum provides an overview of the patent procurement process and related considerations.

Prior to preparing a utility patent application, it may be desirable to perform a preliminary search to assess patentability of the invention.² Such searches vary in scope, from a basic search of U.S. Patent and Trademark Office (“USPTO”) records only, to a broader search of industry literature or foreign patent office records. If you are interested in a patentability search, please let us know so we can discuss strategy, cost estimates, and timing.

A utility patent application will normally include a discussion of the background of the invention, a technical description of how to make and use the invention, drawings illustrating a preferred embodiment of the invention, and patent claims defining the legal protection sought for the invention.

Our fees for preparing a patent application can vary widely and depend on the complexity of the invention and how much information we are provided in advance. Typically, a utility patent application can be prepared and filed for approximately \$10,000 to \$20,000 plus required government fees.³

After the patent application is filed, we will send you a filing receipt and other application documents from the USPTO. Approximately 12 to 24 months later, depending on USPTO workflow, the USPTO will issue an initial communication (“Office Action”) regarding the patentability of your invention, which we will review and report to you.

Costs for work beyond the initial review and report of an Office Action can vary significantly. In most cases, a detailed analysis of “prior art” documents relied upon by the USPTO, legal arguments supported by case precedent, and possible amendments to the application may be necessary to advance the application toward allowance. We will provide a recommended course of action and our best estimate of the associated costs. Typically, attorney fees for preparing and filing an Office Action response range from \$2,000 to \$6,000.

Additionally, the USPTO requires that the inventor(s) and all other persons associated with procuring the patent disclose all information about past disclosures, developments, documents, and products in the field that in any way relate to the patentability of the invention. Thus, we must prepare one or more Information Disclosure Statements submitting such information to the USPTO. This duty is ongoing until the patent issues.

When your utility patent application has been allowed, you will need to pay government issue fees and associated costs to obtain issuance of the patent. Patent owners are also required to pay periodic maintenance fees to the U.S. government to keep issued patents in force. These fees are due 3½, 7½,



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and 11½ years after the date of issue of the patent. Failure to pay these fees will cause a patent to lapse prior to the completion of its full term. If desired, we can discuss sending you reminders of the maintenance fee deadlines.

Subject matter that is disclosed in the patent application but not protected by the issued patent claims may be pursued in “continuing” applications. Your Seed IP attorney can provide additional information on whether these types of applications are appropriate for your situation.

If you are interested in protecting your invention outside the U.S., it is typically required to file a U.S. patent application before any public disclosure of your invention to preserve your right to file in other countries. For most countries, a patent application must be filed within one year of the filing date of the corresponding U.S. patent application. If you are interested in international protection for your invention, please let us know, and we can discuss strategies, timelines, and cost estimates for filing abroad.

We hope this memorandum helps clarify the patent procurement process. If you have any questions or would like to discuss next steps, please feel free to contact us at any time.

- 1 This statutory term is calculated from the filing date of the earliest non-provisional or international patent application disclosing the invention. In the U.S., a “provisional” application may be filed, and a non-provisional or international patent application may be filed up to one year later. The 20-year term may be subject to revision depending on, for example, delays by the USPTO in issuing the patent.
- 2 Utility patents protect new and useful processes, machines, manufactures, or compositions of matter, or new and useful improvements thereof, and are distinguished from design patents and plant patents. Information on design patents and plant patents is available upon request.
- 3 The costs outlined in this document are only estimates, with actual costs potentially being higher depending on the nature of the technology and complexity of the work that is needed. These factors will need to be discussed with a Seed IP attorney.

Official USPTO patent fees effective January 19, 2025.

Legal Notice: The information provided herein is for general information only. It is not intended to and does not constitute legal advice or form an attorney-client relationship with you. In the absence of a written representation agreement with Seed Intellectual Property Law Group LLP (“Seed IP”), Seed IP will not undertake legal representation.